

Re: Request for Information on the Development of an “AI Action Plan”

Submitted to: Networking and Information Technology Research and Development (NITRD)
National Coordination Office (NCO), National Science Foundation. ([REDACTED])

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My name is Matthew Bedell. I am a first-year law student at the University of Akron School of Law studying Artificial Intelligence (AI) Law and Policy. I pen this comment to provide input on the development of the AI Action Plan. My growing expertise in this area informs this response which addresses human creativity in prompts and whether that creativity is copyrightable.

This comment serves as a counterargument that any final product containing purely AI-generated material cannot have human authorship. Human advancement is being stymied by over-restrictive rules governing AI and human authorship. The United States Copyright Office (USCO) has begun to change its stance with the recently released second part of the Copyright and Artificial Intelligence report. However, these changes are insufficiently clear enough to allow for human authorship of copyrightable material made by AI and overseen by a person.

I will explore the argument that human authorship comes from creative expression, that AI empowers said expression, and that utilizing AI in furtherance of creative expression is therefore owned by the human author.

a. Today’s Generative AI Services Cannot Produce Works Without Human Intervention Because They Are Not Given Human Authorship.

The USCO allows for AI tools to assist with, but not stand in for, human creativity. U.S. Copyright Office, *Copyright and Artificial Intelligence: Part 2 – Copyrightability* iii (2025), <https://www.copyright.gov/ai/Copyright-and-Artificial-Intelligence-Part-2-Copyrightability-Report.pdf>. Expanding the idea that copyright protects original human expression, even if it includes the work of an AI. *Id.* However, at the present, non-human authorship continues to not receive any copyright protection.

One example is *Naruto v. Slater*, where the Ninth Circuit denied a monkey copyright protections after the monkey took a picture of itself. *Naruto v. Slater*, 888 F.3d 418 (9th Cir. 2018). This line of reasoning was cited in *Thaler v. Perlmutter*; which affirmed this reasoning by denying the copyrightability of an image generated by AI for lack of human authorship. *Thaler v. Perlmutter*, 687 F. Supp. 3d 140 (D.D.C. 2023). While *Naruto* was decided on standing terms, the line of reasoning is analogous to why *Thaler* was denied copyright. In both cases, the creation was not of human origin and therefore does not qualify for authorship. I disagree with the premises of this line of reasoning. However, *Thaler* follows a common interpretation of 17 U.S.C. 102(a), where “original works” can only be created by human authorship.

This can be seen in the administrative decision on *Zarya of the Dawn* made by the U.S. Copyright Office. In *Zarya of the Dawn*, the USCO cancelled the original certificate of registration of the entire comic and issued a new certificate allowing only the “text” and excluding the AI-artwork. United States Copyright Office, Decision on Registration of *Zarya of the Dawn*, Registration # VAu001480196 (Feb. 21, 2023). The USCO explained that it “will refuse to register a claim if it determines that a human being did not create the work.” U.S. COPYRIGHT OFFICE, COMPENDIUM OF U.S. COPYRIGHT OFFICE PRACTICES § 313.2 (3d ed. 2021) (“COMPENDIUM (THIRD)”). This is because the artwork in *Zarya* was created by an AI called Midjourney, the Copyright Office applied the principle that AI cannot be given human authorship and found that the artwork could not be copyrighted. Kristina Kashtanova, the creator of the disputed work, was left with only the text—a hollow consolation for an artist whose vision was brought to life through AI-generated illustrations, the very essence of her creative expression.

The same thing happened in *Théâtre D'opéra Spatial*, where an AI-generated image—also created using Midjourney—was denied copyright protection by the USCO Review Board because it contained more than a *de minimis* amount of AI-generated content. U.S. Copyright Office

Review Board, Decision on Registration of *Théâtre D'Opéra Spatial* 1 (Sept. 5, 2023), <https://www.copyright.gov/rulings-filings/review-board/docs/Theatre-Dopera-Spatial.pdf>. The human author, Jason Michael Allen, explained that he used numerous revisions in addition to 624 text prompts to create the image. *Id.* at 2. In addition, Mr. Allen used Gigapixel AI to upscale the image and edited the final image using Photoshop. *Id.* The USCO does not want AI to have human authorship, yet the premise that a human is not intimately involved in the creative expression does not have to be actively assumed.

b. In Some Cases, Human-Supplied Prompts to Generative AI Services are Sufficient Human Control for Copyrightability Purposes.

The prompt in itself is written expression. Thus, the output should not be seen as disembodied from the human author, but instead it should be viewed as a tool that is an extension of the human author. This is because AI cannot create anything on its own, "[p]rompts are vital for LLMs because they serve as the primary mechanism for translating user intentions into actionable outputs." Hewing and Leinhos, *The Prompt Canvas: A Literature-Based Practitioner Guide for Creating Effective Prompts in Large Language Models*, arXiv (preprint) No. arXiv:2412.05127 at 2 (2024). Prompting the AI causes it to begin searching through its neural network to decide what the best output is. Because AI cannot create anything unprompted, it needs human intervention to make any creation and thus the human authorship causes the AI-creation.

Would that level of human involvement—crafting precise prompts to achieve a consistent artistic vision—be enough to warrant copyright protection, or does the reliance on AI diminish the claim to authorship? I pose an academic challenge. Make an AI create pictures of something, anything, to match an artistic vision. There is real creativity in inventing prompts to get an AI to produce content that is consistent in quality and style. It is my belief that this creativity should be

rewarded. That prompts are recognized as written, creative expression, and that therefore the AI output is the human author's.

As an example, the USCO would protect audiovisual works made with tools such as Photoshop. However, Photoshop has recently added AI features, having a “Generative Fill” and “Generative Expand.” Adobe, <https://www.adobe.com/products/photoshop/ai.html> (last visited Mar. 14, 2025). We would not say that because the product came from Photoshop, somehow it lacks human authorship even if it used AI functions to create a specialized image. The new guidance from the USCO explicitly allows for human authorship of creative expression assisted by AI tools. Photoshop was used by Mr. Allen in the creation of *Théâtre D'opéra Spatial*. He used it in addition to the AI tools. He directed and prompted the AI to create an image that is consistent with his artistic vision. Why then, does Mr. Allen lack human authorship over his creation?

I want to express that there is a continuum balancing how far AI tools can be used with minimal human involvement. There can be situations where a human author creates a small prompt and obtains a big output. That would be a situation where an AI is the actual author, not a human.

Having said that, there is a lot of creative energy and work that goes into creative expression that embodies human authorship. Such effort may be hard to see when an AI could produce content with just a prompt, yet the effort to complete creative expression is a use of the AI as a tool. The opposing view is that authors would lose copyright protections simply because AI was partially used, just like Ms. Kashtanova was with her comic *Zarya* and Mr. Allen was with *Théâtre D'opéra Spatial*. The USCO does not have to assume that AI was primarily responsible for creative expression. For without human creativity and the prompts that come with that creativity, AI would create nothing at all.

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